ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	83rd Commission Meeting
DATE:	15 June 2022
TIME:	2:15 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISIONS
1.	**Update on Decisions of the Commissions related to LD - LD** *Working level committee of LD and DoPS discussed on the ethical Code of Conduct (CoC) after receiving feedback from Commission and experts working on legal review system.* *Thus, based on the suggestions and also given the fact that the provision on IVS cannot be inserted in the on-going ACAB amendment Bill, LD proposed to first roll out the ethical code of conduct and make it mandatory as prescribed in the ACAB and then IVS can be a follow up action as a compliance to CoC.* *As for guideline on Conflicts of Interest, the Division apprised that because of the focal persons being engaged in other activities, the division couldn't apprise Commission. Nonetheless, the Division is working on it.*	**Approved on rolling out the CoC first since IVS need legal context, making CoC mandatory will help compliance towards IVS.** **On rolling out of CoC, decided to conduct simultaneously to all public servants (Civil servant and Corporate employees). Thus, LD to engage DoPE from the drafting stage to minimize the time lapse.** **Directed to include Monitoring & Evaluation mechanism to ensure compliance towards CoC.** **Regarding the review of Gift Rule and other rules, directed LD to lead and for revision of other SOPs/Guidelines, PPD to lead the coordination and Department/Division concerned to give input.**
2.	**Continue discussion on IVR and cases with RAA and backlogs- DoPS** *In continuation to 82nd Commission Meeting, the Department presented status on Integrity Vetting System and categorization of Integrity Vetting Report. As of date, the Department received 244 applications from which almost 90% has no record with the ACC.* *The Department presented the status on the*	**Directed to include another category to provide record for those individuals who have been imposed and served the penalty.** **However, all the reports should indicate whether it is obligatory/cautionary/advisory/directory.** **Directed to reconcile the data with DoI & LD and come out with the figure for**

	backlog of complaints that qualified for investigation as reported in Annual Reports. Of the 97 backlogs reported in Annual Report 2020-21, the current backlog stands at 70 until June 2021.	**current FY.**
	The Department apprised on the working committee meeting b/w ACC and RAA held on 25 May 2022 and the agenda for the bilateral meeting to be held on 17 June.	**Directed to include new agenda during the bilateral meeting - Strengthening of common understanding on ACC's offences and RAA's observations especially on Embezzlement and Protection of public property.** **As for MOU signing with RAA, reminded PPS to apprise Commission and seek direction on further actions before discussing with external partners. Since RAA proposed changes in areas of cooperation, directed to review the changes first before signing.**
	The Department presented the status of referral from RAA as of 15 June 2022. In total, there are 42 as of date.	**The Commission noted the status.**
3.	**Present the proposed changes to the Phuentsholing Building Operational Guideline- Team Leader, P/ling** *As per the directives of the 82nd Commission Meeting, the Team Leader proposed changes to the Guidelines for the Operation of ACC office building, Phuntsholing as well as other requirement (details attached at Annexure 1)*	**The Commission gave approval as attached in Annexure 2**
4.	Others: ***i.Connection of Camp Trashigang with Dzongkhag fiber optic- Team Leader, T/gang*** *Team Leader at Camp Trashigang was approached by Dzongkhag IT Head to connect the T/gang office with Dzongkhag fiber optic which is initiated by RGoB. All the cost will be borne by Dzongkhag administration.*	**Since the building is owned by Bhutan Telecom (BT), the Commission directed Team Leader to discuss with BT manager on the initiatives by the Dzongkhags and their plans and options. As for the ACC, priority is to ensure the confidentiality of data.**

Commissioner **Commissioner** **Chairperson**

Annexure 2: Proposals from the ACC Filed Office, Phuentsholing (15 June 2022)

#	Agenda	DECISION
1	**Staffing** 2 Cleaner/Sweeper (yet to be recruited) 2 Security Guard/police personnel (yet to be recruited)	For recruitment of cleaner which falls under GSP, since it needs to be routed through RCSC, the Commissioner-in charge to discuss with Focal Commissioner of the RCSC. However, as an interim measure, Team Leader to recruit 2 cleaner/sweeper and meet their salary from the rent collection. As for 2 security guard, the current rate of 3 guards at the Thimphu Head Quarter is Nu. 39,000/- approximately. Thus, directed Head SS to negotiate with the firm for 2 guards for Nu. 30,000/- plus additional guard as and when required at the same rate.
2	**Security Arrangement and use of the ACC Detention Rooms** For the formalization of the detention rooms, the field office will get the necessary approval from the SP of the Police, Phuntsholing. The field office would like to request the Commission for the police security personnel for detention as per the security protocol.	The Commission will discuss with Chief of Police on the proposal as well as other security issues.
3	**Office Workspace** Ground floor: • General Administration/DoPE • TSD/Forensic workstation (current Complaint registration room DoPS) 1st floor: • Office of the field office head Complaint Registration room (DoPS) in the current waiting lounge with aluminum partition	Approved
	• Shifting the CCTV control system from the security guard room to the observation room for the safekeeping of the system.	Not approved given the confidential issue of security guard having access to observation room.

	• Wall-mounting of Interview recording desktop and replacing work table with the existing TV stand to use as the workspace during the interrogation/interviews.	Approved
	• Button to start and stop interview and light (Green/red) indicator.	Not a priority
	• Emergency bell for the interrogation rooms.	Approved. Head SS to ensure installation at the Head quarter as well as other offices in T/gang and Bumthang.
	• Shifting of UPS batteries from observation room to server room to create space.	Not approved
	• Soundproof paneling of interview rooms (acoustic paneling) before June closing.	Approved and Namgay Dorji to explore the market and expediate the process.
	• Installation of CCTV in the hallway of the detention and interrogation area to enhance security and records.	Not a priority
	• Wall-mount fans for the waiting area in front of the interrogation rooms for security personnel and the detainees.	Approved
	• Networking and telephone connection for better work conveniences before June closing.	Under process by SS
	• Large screen to monitor CCTV from the observation room.	Not a priority
	• ACC logo (at the entrance) and Stickers for the toughen glass for the reception area, DoI room, and two kitchens	Approved
	• Install/procure fan at the reception area	Approved
	• Reduce the length of the chandelier in lobby and install a Bhutanese motif on the ceiling in circular	Approved
	• Fill the gaps of the glass partitions	Approved
4	**Online management system/software**	To be developed in-house. Until then, to be maintained manually.

5	**Conference room booking and charges**	
	External conference hall booking should be left to the regional head with information to the Commission In-Charge. Proposed charges to 5000/- from 7000/- for the conference hall (it is a bit expensive given the facilities (only ac/fan/light/projector/wifi) with meal some hotels facilitate it for free and most charge about 5000/- for similar facilities, there is also a fixed rate by the government on the hoteliers)	Approved but overall, the Commission directed that any issues/proposals pertaining to administration and finance, the Head of SS should be informed who will then inform the Commissioner in-charge. As for operations (detention & search and seizure), the Team Leaders to inform the Commissioner in-charge. Approved revision in charges for conference hall
6	**Room booking** Civil servants (as other guests) may be permitted by the regional head, with information to the Commissioner In-charge	Approved but inform Head of SS who will then inform the Commissioner in-charge.
7	NOC for ACC staff from regional offices to be included (esp for the guest house) for staff separation to solve pending bill payments and asset damages issues	Approved and inform HRS for action.
8	**Pantry/Kitchen** Temporary staff recruitment for guest house, 2 cook/cleaner/housekeeper for immediate recruitment. (One temporary cleaner who was earlier hired for cleaning the JPLP building is currently hired for housekeeping/cleaning la). The pantry on the 2nd floor will be operated on an order basis i.e. a cook will take orders and serve food at a fixed rate as displayed on a menu. Guests will not have access to the pantry and cook themselves	Approved but as reflected under serial 1, salary to be met from rent collection until formal approval from RCSC.
9	Fund management by the office	Approved
10	Guest house rent	Since the staff are paid full DSA, as per the financial rule, for the first month, staff to pay 100% rent as

		reflected in the guideline and from second month, pay rent as follows: Standard, Twin Bed: Nu. 200 Standard, Single Bed: Nu. 150 However, for Executive Suite, there will be no change and irrespective of position, based on the booking of other rooms, anyone can occupy the Executive Suite but need to pay Nu. 500 per night/bed. As for Sonam Lham, given that she volunteered and was the first one to go to the office, Commission decided to charge rent of a single bed until October 2022 or acquiring house whichever is the earliest. However, Commission noted that it should not set a precedent.
11	Joint Account	Approved to open a joint account with the approving authority of Team Leader and two members (Receptionist + senior officer). As for mbob, explore possibility to issue card under one person's name and notification number of another for check and balance.
12	**Other Requirements and follow-ups** • Procurement of 3 dramchi den, standard tea cups, table cloth, and thrue kheb, thokey, instance stick burner for high-level guest visits	Approved
	• Gate fixing, staircase window development, finding keys/replacing door locks for all doors without keys.	Approved. To be done immediately.
	• Create aluminum partition in front of the common toilet on the ground floor, in front of the toilet in the DoI room, and crating complaint registration room in the 1st-floor lobby	Approved. To be done immediately.
	• Moving 1 workstation from administrative room to DoI room	Approved
	• Two big flower pots at the entrance of the office	Approved

Dekr.

	• Constructing a store room in the attic near the smoking room	Approved. Directed to use the excess aluminum partition from the Thimphu Head quarter.
	• Wi-fi for conference hall connection with Bhutan Telecom	Approved and Head, SS to explore and expediate.
	• Measurement of aluminum fixing works with Engineer	Approved
	• One-time tea in the morning for the staff at ACC, FO, Pling	Not approved since there is no budget. To be reviewed in future.
	• Creation of recreation room table tennis, yoga, carom board, weights/cycling	Approved, except to send only the available equipment (carom board not included).
13	**Major addition work**	Directed Namagy Dorji to provide detail of the additional work to be carried out before Finance Committee Meeting to be held on 17 June 2022.

Delhi .